

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-14

AIRBOSS DEFENSE GROUP, LLC,
COMPLAINANT,

v.

FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC., MSC
MEDITERRANEAN SHIPPING COMPANY S.A. and MEDITERRANEAN SHIPPING
COMPANY (USA) INC., as
agent for Mediterranean Shipping Company S.A., and TOTAL TERMINALS
INTERNATIONAL, LLC,
RESPONDENTS.

JOINT MOTION FOR CONTINUED STAY OF PROCEEDING

Pursuant to 46 C.F.R. §§502.69 and 502.70, Respondents FedEx Trade Networks Transport & Brokerage, Inc. (“FTN”) and MSC Mediterranean Shipping Company, S.A.¹ and Mediterranean Shipping Company (USA) Inc. (“MSC”)(FTN and MSC are sometimes referred to jointly as “Respondents”) and Complainant AirBoss Defense Group, LLC (“ADG”) hereby jointly move to stay this proceeding through April 30, 2025.

I. INTRODUCTION

This proceeding was commenced when ADG filed a complaint on or about March 14, 2024.

As noted in paragraph 42 of the Complaint, several of the parties are litigating claims arising

¹ Incorrectly identified as Mediterranean Shipping Company, S.A. in the Complaint.

out of the same transactions involved in this proceeding in federal court. On December 17, 2024, the parties engaged in mediation under the auspices of a federal magistrate judge and provided the Presiding Officer with a status report on the results of that mediation. On December 20, 2024, the Presiding Officer issued an Order Staying Proceeding based on the parties' status report.

The parties held a second mediation with the federal magistrate judge, at which substantial progress toward a global resolution of the disputes among them was made. The Presiding Officer stayed the proceeding until March 14, 2025. A third mediation session with the federal magistrate judge was held on March 10, 2025, and resulted in an agreement in principle that resolves the issues in this docket.

II. THIS PROCEEDING SHOULD BE STAYED TO ALLOW FOR FINALIZATION AND SUBMISSION OF THE SETTLEMENT AGREEMENT

The Commission, like all courts, has the power to stay a proceeding. That power is incidental to the inherent ability of every court to control the disposition of the cases on its docket with economy of time for itself, for counsel, and for litigants. *Greatway Logistics Group, LLC v. Ocean Network Express Pte. Ltd.*, FMC Docket No. 21-04, Order Denying Motion to Stay (July 16, 2021), citing *Landis v. North American Co.*, 299 U.S. 248, 254 (1936).

The Commission also has a strong and consistent policy of 'encourag[ing] settlements and engag[ing] in every presumption which favors a finding that they are fair, correct, and valid.' *Aeneas Exporting LLC v. Carlo Shipping Intl, Inc.*, Docket No. 2011, 2020 FMC LEXIS 189, at *2, 2020 WL 5942148, at *2 (Fed. Mar. Comm'n Aug. 24, 2020) (Wirth, C.J.) (quoting *Inlet Fish Producers, Inc. v. Sea-Land Serv., Inc.*, 29 S.R.R. 975, 978 (ALJ 2002)). "[I]f it is the considered judgment of the parties that whatever benefits might result from vindication of their positions would be outweighed by the costs of continued litigation and if the settlement otherwise complies with law the Commission authorizes the settlement." *Delhi Petroleum Pty. Ltd. v. US. Atl. & Gulf/Australia -*

New Zealand Conf. and Columbus Line, Inc., Docket Nos. 88-2, 88-4, 1988 FMC LEXIS 25, at *19, 24 S.R.R. 1129, 1134 (All Aug. 12, 1988)). "Reaching a settlement allows the parties to settle their differences, without an admission of a violation of law by the respondent, when both the complainant and respondent have decided that it would be much cheaper to settle on such terms than to seek to prevail after expensive litigation." *Mac Indus., Inc. d/b/a Mac Container Line v. COSCO Shipping Lines Co., Ltd.*, Docket No. 20-09, 2020 FMC LEXIS 181, at *3, 2020 WL 4464298, at *2 (Fed. Mar. Comm'n July 29, 2020) (Wirth, C.J.) (quoting *APM Terminals N Am., Inc. v. Port Auth. of N.Y. and N.J.*, 31 S.R.R. 623, 626 (FMC 2009)).

Good cause exists to stay this proceeding. A stay is consistent with the Commission's policy encouraging settlement. Since a settlement in principle has been reached, there would be no point in forcing the parties to pursue discovery or to take other action in this proceeding. In other words, a further stay conserves the resources of the parties and of the Commission without prejudicing any party.

In light of the foregoing, the parties respectfully request that this proceeding be stayed until April 30, 2025. The parties intend to submit a motion for approval of the confidential settlement and dismissal of this proceeding with prejudice on or before that date. Should additional time be necessary to finalize the settlement agreement and the motion, the parties will timely move for a further extension of the stay.

Respectfully submitted,

Dated: March 12, 2025

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